



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAY 8 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12385

EXPIRATION DATE: January 31, 2001
--

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Maine Yankee Atomic Power Company (MYAPC)
Wiscasset, ME
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-time transportation in commerce of three steam generators and one pressurizer to be classed as surface contaminated objects, class II, and transported as non-specification package from the Maine Yankee Plant in Wiscasset, ME to the GTS Duratek processing facility in Memphis, TN. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analysis performed in the development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR § 173.403 in so far as the fixed and non-fixed contamination levels for surface contaminated objects, class II, (SCO-II) are waived for the components specified in the exemption application.
 - b. 49 CFR § 173.427(a) in so far as requirement that SCO-II, must be transported in authorized packaging is waived. The components specified in the exemption application are authorized to be transported in non-specification packages under the specified transport plan.
5. BASIS: This exemption is based on MYAPC's November 16, 1999 application and the additional technical data submitted on March 13, 2000. All documents were submitted in accordance with § 107.105 and the public proceeding thereon.

MAY 8 2000

Continuation DOT E-12385

Page 2

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, surface contaminated object	Class 7	UN 2913	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) Under the provisions of this exemption, the components and their personnel barrier are considered to be a non-specification package when transported in accordance with the MYAPC transport plan.

(2) The contamination levels and radionuclides present on each component must be consistent with the levels identified in MYAPC's original application and its subsequent technical data submittal.

(3) To maximize radiation protection, each component must be prepared for shipment by welding or bolting shut all nozzles, instrument penetrations and mechanical enclosures using closure plates. Prior to shipment, contamination surveys will be conducted. All areas with loose contamination that is in excess of DOT requirements (22 dpm/cm² for Beta & Gamma; 2.2 dpm/cm² for Alpha) will be decontaminated or will be treated with a fixative and/or paint.

(4) All lifting mechanisms must be removed or rendered inoperable.

b. OPERATIONAL CONTROLS -

(1) The transportation of the package under this exemption must be consigned as exclusive use under the provisions of § 173.427(a)(6).

(2) All controls, provisions and routes specified in the transportation plan submitted as Attachment 4 to the original application must be followed.

c. MARKING -

The Package must be plainly and durably marked "DOT-E-12385" in accordance with § 172.301(c). In accordance with § 173.427(a)(6), the package must be marked "Radioactive - SCO" and, if applicable, the package must also be stenciled with the letters "RQ".

8. SPECIAL PROVISIONS: The components must be marked, labeled, and placarded in accordance with the provisions in § 173.427(a).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Robert A. McGuire
Acting Associate Administrator
for Hazardous Materials Safety

MAY 8 2000

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption are
permitted. Any alteration of this exemption is prohibited.

PO: RBoyle